



POLICE DEPARTMENT

-----X
In the Matter of the Disciplinary Proceedings :

- against - :

Police Officer William McKiver :

Tax Registry No. 935285 :

Police Service Area 6 :

FINAL

ORDER

OF

DISMISSAL
-----X

Police Officer William McKiver, Tax Registry No. 935285, having been served with written notice, has been tried on written Charges and Specifications numbered C-031343 and C-032603, as set forth on form P.D. 468-121, dated January 16, 2024 (amended on March 7, 2025), and January 20, 2025 (amended on March 4, 2025), respectively, and after a review of the entire record, Respondent is found Guilty of all charges.

Now therefore, pursuant to the powers vested in me by Section 14-115 of the Administrative Code of the City of New York, I hereby DISMISS Police Officer William McKiver from the Police Service of the City of New York.


HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER

EFFECTIVE: 3/27/25

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POLICE DEPARTMENT

March 21, 2025

-----X

In the Matter of the Charges and Specifications	:	Case Nos.
- against -	:	C-031343
Police Officer William McKiver	:	C-032603
Tax Registry No. 935285	:	
Police Service Area 6	:	

-----X

At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Anne E. Stone
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department: David Green, Esq.
Department Advocate's Office
One Police Plaza, Room 402
New York, NY 10038

For the Respondent: John Tynan, Esq.
Worth, London & Martinez, LLP
111 John Street, Suite 640
New York, NY 10038

To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

Disciplinary Case No. C-031343

1. Said Police Officer William McKiver, on January 11, 2024, while on duty and assigned to the 28 Precinct, wrongfully was unfit for duty due to his consumption of intoxicants.
(As amended)

A.G. 304-04, Page 1, Paragraph 1

FITNESS FOR DUTY

Disciplinary Case No. C-032603

1. Said Police Officer William McKiver, while assigned to the Brooklyn Court Section, while off duty, on or about January 3, 2025, at about 1700 hours, while operating a motor vehicle eastbound on Interstate 80 in New Jersey, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, in that said Police Officer operated said motor vehicle while in an intoxicated condition.

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

2. Said Police Officer William McKiver, while assigned to the Brooklyn Court Section, while off duty, on or about January 3, 2025, at about 1700 hours, while operating a motor vehicle eastbound on Interstate 80 in New Jersey, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, in that said Police Officer operated said motor vehicle while his ability to do so was impaired by his consumption of alcohol.

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

3. Said Police Officer William McKiver, while assigned to the Brooklyn Court Section, while off duty, on or about January 3, 2025, at about 1700 hours, while operating a motor vehicle eastbound on Interstate 80 in New Jersey, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, in that said Police Officer wrongfully caused damage to another motor vehicle by colliding with, or causing a collision with, said other motor vehicle.

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

4. Said Police Officer William McKiver, while assigned to the Brooklyn Court Section, while off duty, on or about January 3, 2025, at about 1700 hours, wrongfully was unfit for duty due to his consumption of intoxicants.

A.G. 304-04, Page 1, Paragraphs 1, 2

PROHIBITED CONDUCT

5. Said Police Officer William McKiver, while assigned to the Brooklyn Court Section, while off duty, on or about January 3, 2025, at about 1700 hours, having been arrested for operating a motor vehicle while in an intoxicated condition, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, in that said Police Officer wrongfully refused to submit to a chemical breath test to determine his blood alcohol concentration.

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

6. Said Police Officer William McKiver, while assigned to the Brooklyn Court Section, while off duty, on or about January 3, 2025, at about 1700 hours, while operating a motor vehicle eastbound on Interstate 80 in New Jersey, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, in that said Police Officer operated said motor vehicle with a suspended driver's license. *(As added)*

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

NJ Rev Stat § 39:3-40 (2024)

PENALTIES FOR DRIVING
WHILE LICENSE
SUSPENDED

REPORT AND RECOMMENDATION

An expedited trial in the above referenced matter was held before me on March 13 and 17, 2025. Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. The Department called Sergeant Neil O'Donnell, Captain Anthony Battaglia, Sergeant Dywayne Harris, and Sergeant Dwayne Carter as witnesses. Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, I find Respondent Guilty of the charged misconduct and recommend that he be DISMISSED from the New York City Police Department.

ANALYSIS

Respondent, who has twenty years of service with the Department, submitted an application for service retirement on February 26, 2025. This case involves two separate alcohol-

related incidents. In the first, which occurred on January 11, 2024, Respondent is alleged to have been unfit for duty while working at the 28 Precinct. The second incident occurred on January 3, 2025, when Respondent was arrested by the New Jersey State Police for allegedly driving while intoxicated.

Disciplinary Case C-03134 (2024): Unfit for Duty

Respondent has denied that he was unfit for duty on the date in question; the Department presented testimony from witnesses who observed him on that day and found him to be unfit. Sergeant Neil O'Donnell testified that on January 11, 2024, he was working in the 28 Precinct supervising the precinct's Neighborhood Safety Team. He stated that when he came into the command at approximately 1300 hours, he saw Respondent, whom he knew "in passing," at the desk working as the telephone switchboard operator ("TS"). Sergeant O'Donnell described standing perpendicular to Respondent, with approximately three feet separating them, as he signed into the Command Log. He remembered briefly smelling alcohol, coming from Respondent. Sergeant O'Donnell conceded that, "I didn't think too much of it at the time because, you know, people use hand sanitizer, stuff like that. You are not expecting a smell of alcohol when you are behind a desk at a precinct." (Tr. 41-43)

Sergeant O'Donnell remained in the vicinity of the desk, saying hello to colleagues and getting ready to start his work. He recalled his attention being drawn to Respondent because he was "yelling" during a phone call with a member of the public. Sergeant O'Donnell further recounted that a female police officer then passed by, wearing athletic clothes, and Respondent made an "inappropriate comment" about the officer in a loud voice. He explained that, in his opinion, Respondent's behavior was notable because Respondent was generally a reserved and

quiet person and because there were quite a few members of the public in the command waiting for assistance near the desk. (Tr. 42-44, 56)

Sergeant O'Donnell readily acknowledged that he had no direct "face to face" conversation with Respondent but heard him slurring his speech when speaking on the phone. In addition, he noted that Respondent's eyes looked bloodshot. He testified that in the course of his work as a police officer, as well as in his personal life, he has seen individuals under the influence of alcohol, and in his opinion, Respondent was intoxicated. When asked to define fitness for duty, Sergeant O'Donnell responded that an officer is unfit for duty when they are under the influence of an intoxicant which is having an effect on them. (Tr. 39-40, 45, 61-64, 68)

After making this conclusion, Sergeant O'Donnell had another police officer relieve Respondent from his duties at the TS, while he informed the Operation Coordinator, Lieutenant Theodore Wells, of Respondent's condition. Sergeant O'Donnell completed a "Supervisor's Fitness for Duty Report," concluding that Respondent was unfit for duty because he was intoxicated. (Tr. 45-50, 68, 81; Dept. Ex. 3, Fitness for Duty Report prepared by Sgt. O'Donnell)

The Executive Officer of the 28 Precinct, Captain Anthony Battaglia, took the stand and testified that in July of 2023, Respondent was involved in an off-duty alcohol-related incident. In order to "to get [Respondent] the help that he needed from the -- from the job," Captain Battaglia removed Respondent's firearms for a non-disciplinary reason pursuant to the provisions of Administrative Guide 330-11. Captain Battaglia indicated that Respondent was still on restricted duty on the date of this incident. (Tr. 96-97)

Captain Battaglia recounted that Lieutenant Wells called him at approximately 1320 hours and informed him that Respondent was intoxicated. Captain Battaglia, who was the second platoon duty captain for Patrol Borough Manhattan North ("PBMN"), returned to the Precinct

and met with Respondent, the ICO, and delegates from the Police Benevolent Association (“PBA”). Captain Battaglia described sitting at a table directly across from Respondent with approximately three feet separating them. He observed that Respondent’s eyes were glassy, his speech was slurred, and Captain Battaglia could smell alcohol “coming from him.” Captain Battaglia testified that, in the course of his work as a police officer, he has seen individuals under the influence of alcohol, and in his opinion, Respondent was intoxicated, making him unfit for duty. During cross-examination, Captain Battaglia stated that if he had come across Respondent driving in this condition, he would have arrested him for driving while intoxicated. Captain Battaglia called the Executive Officer of Patrol Borough Manhattan North, Deputy Chief Maximo Tolentino, to inform him that he was suspending Respondent from duty because of this incident. (Tr. 94-102, 110, 129)

Captain Battaglia explained that Lieutenant Chad Rosenberg¹ also spoke to Respondent and upon finding Respondent unfit for duty, filled out a “Supervisor’s Fitness for Duty Report” documenting his observations. Captain Battaglia acknowledged that he completed two Supervisor’s Fitness for Duty reports with regard to this incident. On the first, he made a clerical error, indicating that Respondent was “fit,” rather than “unfit” for duty. Shortly thereafter, he discovered the error and completed the second report, with the correct conclusion, that Respondent was unfit for duty. (Tr. 96-97, 104-10, 129, 137-38, 143; Dept. Ex. 1, Fitness for Duty Reports prepared by Captain Battaglia)

Respondent testified that the July 2023 removal of his firearms and duty status change were due to “alcohol dependency.” He acknowledged that the restricted duty status was still in effect on the date of this incident. Respondent recalled that after work on January 10, 2024, he

¹ Lieutenant Chad Rosenberg retired from the NYPD on July 31, 2024.

drank about a half pint of vodka, split into three drinks. He started drinking at around 1900 hours, stopping at some point to sit outside, "clearing my mind." Respondent claims he did not ingest any alcoholic beverages the next morning before work, or at any time during his tour. Respondent stated that for the first half of his tour he was the cell-attendant, responsible for any prisoners lodged at the precinct. (Tr. 233-34, 240, 243-47)

With respect to his purportedly unusual demeanor, Respondent recalled that he was reassigned to the TS around 1200 hours. Respondent acknowledged speaking loudly on the phone explaining that his tone was in response to the caller, who was "irate" at not being able to speak to a high-level supervisor. (Tr. 234-236)

Administrative Guide 304-04 requires members to be fit for duty at all times, except when on sick report, and prohibits the consumption of intoxicants to the extent that the member becomes unfit for duty.

This case turns entirely on an assessment of the credibility of the witnesses regarding whether Respondent was fit for duty. When analyzing credibility, this tribunal may consider such factors as witness demeanor, consistency of a witness' testimony, supporting or corroborating evidence, witness motivation, bias or prejudice, and the degree to which a witness' testimony comports with common sense and human experience. The determination of which accounts are most credible, however, is within the sole province of the fact finder.

I find that the Department Advocate has proven, by a preponderance of the evidence, that Respondent, while at work, was wrongfully unfit for duty due to his consumption of intoxicants. Two supervisors provided forthright, logical testimony about how they came to the conclusion that Respondent was unfit and credibly asserted that a third supervisor reached the same conclusion. Sergeant O'Donnell testified credibly that although he did not have a face-to face

conversation with Respondent, he smelled alcohol momentarily, when he was signing in, right as he first encountered Respondent. Still, he did not make a hasty judgment that Respondent was intoxicated. Indeed, Sergeant O'Donnell conceded that he initially dismissed the scent as hand sanitizer. It was only after he heard Respondent yelling on the phone, slurring his speech, saw his bloodshot eyes, and heard the out of character comment he made regarding a female officer that he made the connection to the smell of alcohol. Sergeant O'Donnell testified that based on those various observations, in his opinion, Respondent was intoxicated-- rendering him unfit for duty. I found his testimony to be unembellished and credible.

Similarly, Captain Battaglia recounted the events in a straightforward manner. He described Respondent slurring his speech during their meeting. Captain Battaglia also recounted smelling alcohol "coming from" Respondent, who had glassy eyes. Taken together, these are all indicia of intoxication. Captain Battaglia, a sixteen-year veteran of the Department, explained that in the course of his career he has had experience with intoxicated individuals, and in his opinion, Respondent was unfit for duty. Captain Battaglia recalled offering Respondent medical treatment, which he refused, and reminding Respondent of the counseling services available to members of the service. Captain Battaglia testified in a credible manner. Indeed, he readily admitted to making an error when filling out the first Supervisor's Fitness for Duty Report, which he kept and submitted to the case investigators.

Conversely, Respondent denied consuming alcohol, either immediately before, or during his tour of duty. While he acknowledged drinking at home the evening before work, it is not credible that three drinks, consumed more than twelve hours earlier, would account for three supervisors smelling alcohol emanating from Respondent or cause him to be unusually loud, slur

his speech and have glassy eyes. I find his testimony on this point to be a self-serving attempt to deny culpability in order to avoid the consequences of his actions.

In contrast, the Department presented testimony from two credible members of the service, neither of whom had any interest in the outcome of this matter. Each of them, as a result of independent observations of Respondent, concluded that, on the date in question, he was unfit for duty as a result of consuming alcohol. In addition, Captain Battaglia testified that a third supervisor, Lieutenant Rosenberg, after making his own observations, came to the same determination. Accordingly, I find Respondent Guilty of the sole specification in this case.

Disciplinary Case C-032603 (2025): Driving While Intoxicated

It is undisputed that on January 3, 2025, Respondent was arrested by New Jersey State Trooper [REDACTED] for driving while intoxicated (“DWI”) after he was involved in a motor vehicle accident.² Respondent subsequently met with the Duty Captain and Sergeant Dwyane Carter from IAB in Staten Island at approximately 0200 hours on January 4, 2025³. Trooper [REDACTED] did not appear before the tribunal.

Sergeant Dywayne Harris testified that he is assigned to the Internal Affairs Bureau (“IAB”), Investigations Unit 21. On the date in question, his unit was notified that a member of service, Respondent, had been arrested for DWI in New Jersey. Although not the assigned investigator, Sergeant Harris explained that when a member of service is arrested everyone on the team assists to help gather information quickly. On that day, Sergeant Harris was tasked with calling Trooper [REDACTED]. Although the conversation was not recorded, Sergeant Harris

² As of the conclusion of this hearing, Respondent’s criminal case was still pending in New Jersey.

³ Sergeant Carter conceded that he could not recollect whether the duty captain found Respondent fit for duty during that encounter. (Tr. 219)

“transcribed” the conversation in a case worksheet. In addition to the worksheet, the trooper’s body-worn camera, dashboard camera (“dashcam”) footage, accident report and computer aided dispatch (“CAD”) report were entered into evidence. (Tr. 155-57)

During his conversation with Sergeant Harris, Trooper [REDACTED] recounted that at approximately 1700 hours, while travelling westbound on Interstate 80 in New Jersey, he observed, in his rearview mirror, Respondent’s vehicle “zigzagging” and then sideswipe another automobile. (Tr. 157)

After both vehicles pulled over, Trooper [REDACTED] approached Respondent, who was in the driver’s seat, and after inquiring about what happened, asked Respondent, “how much have you drank?” Respondent identified himself as a police officer and produced his Department identification. Respondent did not provide a driver’s license, however, a computer check showed that Respondent’s license was suspended. Respondent attempted field sobriety tests, which he was unable to complete. Trooper [REDACTED] arrested Respondent for driving while intoxicated. Respondent refused to submit to either a portable sobriety test or a breathalyzer test. (Tr. 155-157; Dept Exs. 8 & 9; Dept. Ex. 10, body-worn camera footage; Dept. Ex. 12, dashcam footage, Dept Ex. 16)

The Department presented Trooper [REDACTED]’s body-worn camera footage that captured the incident. The following is a summary of Department’s Exhibit 10.

- 00:37-00:41: Trooper [REDACTED] exits his RMP and orders the other operator to stay in his vehicle.
- 00:42-01:18: Trooper [REDACTED] approaches Respondent’s vehicle and knocks on the front passenger side door window. Respondent unlocks the door, and Trooper [REDACTED] opens the door. Trooper [REDACTED] asks, “What’s going on?” Respondent replies, “Nothing, man. Nothing.” Multiple times, Trooper [REDACTED] asks, “What happened?” Respondent admits that he “hit his car. I’m fine.” Trooper [REDACTED] asks for Respondent’s license. Respondent informs the trooper that he does

- not have it. He stammers briefly and Trooper [REDACTED] inquires as to how much alcohol Respondent had consumed.
- 01:19-01:29: Respondent replies, "Huh?" Trooper [REDACTED] asks, "Where are you coming from?" Respondent does not answer. Trooper [REDACTED] inquires as to whether Respondent has his license on him. Respondent answers in the negative.
- 03:08-03:20: Trooper [REDACTED] approaches the other vehicle involved in the collision and knocks on the front passenger sidecar door window. The other operator rolls down the window. Trooper [REDACTED] states, "I saw everything." The operator asks, "What happened? I don't even know." Trooper [REDACTED] informs him that Respondent "swerved" into his lane.
- 04:45-05:07: Trooper [REDACTED] walks back to Respondent's vehicle and reopens the front passenger side door. The trooper questions, "Where is your license? I know you have your license on you." With his cheek resting against his right hand. Respondent responds, "I don't have it."
- 20:13-23:13: Trooper [REDACTED] enters the RMP and resumes his inquiry. He flags down the other trooper and announces, "He's suspended." Trooper [REDACTED] indicates over his radio he will "have [Respondent] for tests."
- 23:14-25:49: Trooper [REDACTED] exits his RMP and approaches Respondent, opening the driver side door. He orders Respondent to "step out" and indicates that he wants to conduct tests to verify whether Respondent was fit to operate his vehicle. Trooper [REDACTED] directs Respondent to the front of the vehicle and attempts to conduct field sobriety tests. Trooper [REDACTED] cuts the test short and places Respondent in handcuffs.

Respondent testified that on January 3, 2025, he dropped his son at his mother's house in the Bronx. Respondent described feeling "troubled" at this time because his father had suffered a medical emergency a month earlier, and his son had been shot during a crime that occurred on December 26, 2024. (Tr. 251-53)

After leaving his son, he drove his father's car to a liquor store and bought a bottle of vodka. He then went to a deli, located next door, and purchased juice and a cup of ice.

Respondent recalled mixing the vodka with the juice and drinking some of it while standing outside of the store. When asked during cross-examination if he continued to drink once he got back into his car in the parking lot, Respondent replied, "I believe so." (*Id.*)

Respondent explained that he decided to visit his girlfriend in New Jersey and drove over the bridge onto Interstate 80 (I-80). While en route, he recalled "making contact" with another vehicle. Respondent acknowledged that at the time of the accident he was "probably" feeling the effects of the alcohol. He stated, "I think I was cut off." but admitted that he couldn't really remember the details of the accident. Respondent recounted that he and the other motorist immediately pulled over to the shoulder of the highway, where a New Jersey State Trooper who saw the incident instructed him to "stay in the car." Respondent conceded that he could not recall much of the interaction, but he did remember identifying himself as a police officer and being handcuffed. Respondent professed that, although he "believes" that he was offered the opportunity to take a breathalyzer test, he does not recall refusing to do so. He also conceded that his driver's license was suspended. (Tr. 245, 254-257)

Respondent stands charged with engaging in conduct prejudicial to the good order of the Department in five separate specifications. The allegations are that on January 3, 2025, Respondent operated a vehicle, with a suspended driver's license, while he was intoxicated and his ability to drive was impaired as a result of consuming alcohol, that he collided with another car, causing property damage, and that he refused to submit to a chemical breath test. In addition, Respondent is charged with being unfit for duty during this incident.

I find that the Department Advocate has proven each of the specifications by a preponderance of the credible, relevant evidence.

Specifications 1, 2, 3, and 4: Driving While Intoxicated/Accident/Unfit for Duty

Respondent admitted that before driving to visit his girlfriend, he stopped at a liquor store, and after purchasing a bottle of vodka, filled and drained a cup two or three times. He then began driving from the Bronx into New Jersey, where he sideswiped another car. During cross-examination, Respondent reluctantly admitted that at the time of the accident he was “probably” feeling the effects of the drinks he consumed, and because of that he did not remember everything that took place. (Tr. 254-55).

The evidence put forth by the Department supports those findings. In the absence of live testimony from Trooper [REDACTED], this tribunal carefully considered his statement to Sergeant Harris, the accident report he completed, and the CAD printout of the incident. I credit Trooper [REDACTED]’s account of the incident. His version of events, that he saw Respondent sideswipe the other vehicle, causing damage, and believed Respondent to be intoxicated, is also consistent with the body-worn camera footage. In that recording, Trooper [REDACTED] tells the other driver that he saw the accident and that it was Respondent’s fault. Within a minute of speaking to Respondent, Trooper [REDACTED] asked him how much he had to drink. (Dept. Ex. 10 at 01:19-01:29, 03:08-03:20) Perhaps most compelling is that Trooper [REDACTED], after observing Respondent for almost half an hour, concluded that he had probable cause to arrest Respondent for driving while intoxicated.

It is undisputed that no NYPD supervisor responded to the scene of Respondent’s accident to make a determination regarding his fitness for duty. However, taking into consideration all of the above, there is overwhelming evidence that Respondent was intoxicated, making him unfit for duty. Accordingly, I find Respondent Guilty of Specifications 1, 2, 3, and 4.

Specification 5: Refusal to Submit to Breath Test

Administrative Guide 304-04 instructs that a uniformed member of the service who refuses to submit to chemical testing in connection with an alleged violation of section 1192 of the New York State Vehicle and Traffic Law (Driving While Intoxicated) will be charged with violating Administrative Guide procedure 304-06." "Engaging in conduct prejudicial to the good order, efficiency, or discipline of the Department."

With regard to the refusal to submit to a chemical breath test, Trooper [REDACTED] told Sergeant Harris that Respondent refused to submit to a chemical breath test. The CAD report notes that Respondent was issued a summons for refusing to submit to a chemical breath test. This was also noted in the Crash Investigation Report. For the foregoing reasons, I find Respondent Guilty of Specification 5.

Specification 6: Suspended License

Respondent admitted that his license was suspended on the date of the accident. In addition, the Department presented body-worn camera footage which shows Trooper [REDACTED] running computer database checks and informing another Trooper on the scene that Respondent's driver's license is suspended. This is also reflected in the CAD, as well as the Crash Report. Accordingly, I find Respondent Guilty of Specification 6.

PENALTY

In order to determine an appropriate penalty, this tribunal, guided by the Department's Disciplinary System Penalty Guidelines ("Matrix"), considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent's employment history was also examined. *See* 38 RCNY § 15-07. Information from

his personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondent, who was appointed to the Department on July 1, 2004, has been found Guilty of misconduct in two alcohol-related incidents that occurred one year apart. In the first, Disciplinary Case C-031343, Respondent has been found guilty of being unfit for duty while at work. In the second, Disciplinary Case C-032603, he has been found guilty of driving with a suspended driver's license, while impaired and intoxicated, being unfit for duty, causing an accident which resulted in property damage, and refusing to submit to a chemical breath test. The Department has recommended termination, and I concur with that recommendation.

The presumptive penalty for being unfit for duty is forfeiture of 30 penalty days, dismissal probation, ordered breath testing, and cooperation with counseling. The mitigated penalty is 10 penalty days. The aggravated penalty is termination. The Matrix suggests that committing this type of misconduct while on-duty may be an aggravating factor when assessing penalty. (Matrix p. 48-49)

The presumptive penalty for driving while ability impaired/driving while intoxicated is 30 suspension days, 20 penalty days, dismissal probation, cooperation with counseling and ordered breath testing. There is no mitigated penalty. The aggravated penalty is termination. An additional five penalty days is the presumptive additional penalty for colliding with another vehicle. (Matrix p. 39-40)

Additionally, Respondent has been found guilty of other misconduct, including refusing to submit to a chemical breath test and driving with a suspended license which would warrant the forfeiture of additional penalty days

With respect to Disciplinary Case C-031343, involving Respondent being unfit for duty while at work, I find that an aggravated penalty is appropriate. Respondent was intoxicated at work where, on the date in question, he was responsible for the safety of prisoners, as well as interacting with members of the public in person and over the telephone. His actions had the potential to damage the trust placed in the Department by putting people who are entrusted to our care in danger. In addition, by coming to work in this state. Respondent has exhibited a flagrant disregard for the Department's rules, paramilitary structure, and indeed, for his coworkers.

With respect to Disciplinary Case, C-032603, the tribunal is sympathetic to the personal circumstances that Respondent testified about. However, they neither excuse nor mitigate his actions. Respondent, after dropping his son off, purchased and consumed a substantial amount of alcohol, knowing that he intended to drive to his girlfriend's home. Indeed, it seems to be only by sheer luck that the accident he caused did not result in anything more serious than property damage.

The Department gave Respondent an opportunity to address his issues with alcohol in July 2023, when his firearms were removed in a non-disciplinary action after an off-duty incident. Regrettably, Respondent did not take advantage of the chance he was given. He has been found guilty by this tribunal in not one, but two serious alcohol-related incidents of misconduct, both on and off duty. In accordance with the Disciplinary Matrix, had the specifications been assessed individually, the total number of penalty days would be greater than 90, thus warranting forced separation or termination from the Department. When confronted with these two cases, occurring within a year of one another, I find Respondent's actions are incompatible with his continued employment with the New York City Police Department and that the only appropriate penalty is termination.

Respectfully submitted,

Anne E. Stone

Anne E. Stone

Assistant Deputy Commissioner Trials

APPROVED

MAR 27 2025

Jessica S. Tisch

JESSICA S. TISCH
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: SUMMARY OF EMPLOYMENT RECORD
POLICE OFFICER WILLIAM MCKIVER
TAX REGISTRY NO. 935285
DISCIPLINARY CASE NOS. C-031343 & C-032603

Respondent was appointed to the Department on July 1, 2004. On his three most recent annual performance evaluations, he was twice rated "Exceeds Expectations" for 2020 and 2022, and received a rating of "Exceptional" for 2021. He has been awarded two medals for Meritorious Police Duty.

In 2017, Respondent forfeited 25 vacation days after pleading guilty to signing a criminal court complaint containing inaccurate information about his observations and contraband recovered in connection with an arrest, causing inaccurate entries to be made in Department records regarding same, and failing to make entries related to the arrest in his Activity Log.

In 2015, Respondent forfeited 20 vacation days after pleading guilty to wrongfully utilizing a Department vehicle and EZ-Pass for personal reasons on two occasions; being absent from his assignment for 40 minutes and traveling out of his precinct and borough without permission or necessity; and, wearing his uniform while off duty without permission.

In connection with Case No. C-031343, Respondent was suspended without pay from January 11, 2024 through February 11, 2024; in connection with Case No. C-032603, he was suspended without pay from January 4, 2025 through February 2, 2025. Additionally, Respondent was placed on Level 2 Discipline Monitoring in March 2024; that monitoring remains going. Respondent had previously been on Level 2 Discipline Monitoring from March 2015 through December 2017, related to the above-referenced prior disciplinary matters.

For your consideration.

Anne E. Stone
Assistant Deputy Commissioner Trials